

PERFORMANCE WORK STATEMENT (PWS)
FOR
COCONUT TREE PRUNING, REMOVAL, & DISPOSAL
SERVICE

Kalaupapa National Historical Park
Kalaupapa, Molokai, Hawaii

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Prepared by
National Park Services (NPS)
Pacific Western Region (PWR) – Interior Region 12

1.0 DESCRIPTION OF SERVICES

Kalaupapa National Historical Park (KALA) is located on the isolated north shore of the island of Molokai, State of Hawaii. The park occupies a flat lava peninsula approximately 2¼ miles wide, extending from a 2,000-foot sea cliff. Access to the park is limited to a steep foot trail, small commercial aircraft, or ocean vessel.

KALA is unique within the National Park System (NPS) as it remains home to an active community of Hansen's disease patients. The privacy, dignity, and respect of this community shall be upheld by all contractor personnel at all times.

KALA requires professional coconut tree pruning services for approximately 200 mature coconut trees and coconut tree removal services of approximately 10 mature coconut trees annually, including removal of coconut debris and off-island disposal of all associated coconut waste. Services shall be coordinated with the annual NPS round-trip barge sailing between Honolulu and Kalaupapa, typically occurring in July or August.

Services will be required for approximately one base year with the potential for two subsequent option years.

1.0.1 BACKGROUND

Roughly 200 coconut trees around the settlement have been identified and are targeted for pruning and trimming each year. Coconut trees range in height from 35-feet to 75-feet. Heights were estimated by sight from ground level to the top of the leaves. The coconut trees are part of the iconic scenery representative of this historic site and require regular maintenance to keep the area well maintained and to reduce potential safety hazards among visitors and residents.

1.1 Scope for All Service Performance Year

The Contractor shall be responsible for providing all labor, travel, lodging, materials, supplies, supervision, permits, licenses, insurance, and equipment necessary to perform the required services described herein.

All coconut pruning and removal services shall be completed prior to the annual barge sailing.

1.1.1 Task 1: Prune 200 Coconut Trees

The Contractor shall prune approximately 200 mature coconut trees annually as identified by the NPS. Due to tree height, traditional tree-climbing methods shall be used—ropes and climbing spikes to maintain hand and foot grip.

Green (live) coconut fronds shall be trimmed only “below the horizontal plane” to avoid stress from over pruning. All identified coconut trees shall have coconuts removed, and yellow and brown fronds shall be pruned. Trimming tools shall be disinfected between trees, using flame or other approved sterilization methods, when disease is present or suspected.

All green waste will be staged in the settlement at a location assigned by the POC, until waste can be properly disposed of on the annual barge. Overland travel through grass and soil vegetation using heavy machinery without POC approval is prohibited.

The Contractor shall send to the NPS point of contact (POC), at least 30-days advance notice on planned service start dates for performing work under this contract.

1.1.2 Task 2: Fell and Remove 10 Coconut Trees

All identified coconut trees are to be removed in sections and lowered to the ground using ropes/blocks/and pulleys to minimize disturbance to the ground below and any other contributing feature of the National Historical Landmark.

Should the tree trunk be unsafe to climb using traditional tree climbing methods, the Contractor must consult with the POC devising a new plan for safe tree removal. Tree stumps are to be flush cut to ground level using a push stump grinder.

Overland travel through grass and soil vegetation using heavy machinery without POC approval is prohibited.

The Contractor shall send to the NPS point of contact (POC), at least 30-days advance notice on planned service start dates for performing work under this contract.

1.1.3 Task 3: Additional Detail for Task 1 and 2

Contractor's Use of Premises

The immediate work area shall be closed to the public during tree-pruning operations. The Contractor shall conduct all activities in a manner that ensures the least possible inconvenience to the public. Road closures may be permitted, when necessary, only with prior approval of the POC. Storage of materials shall be confined to designated on-site areas approved by the POC.

Preservation of Natural and Cultural Features

All operations shall be confined to the established work limits of the project. The Contractor shall prevent damage to natural, cultural, and historic features and shall restore any damaged areas at no additional cost to the Government, subject to prior approval of the Contracting Officer (CO).

The Contractor shall not remove, injure, dig, or destroy any trees, vegetation, or grounds not specifically identified for disturbance or removal without prior approval from the POC. Ropes, cables, or pulleys shall not be fastened to existing buildings or utility poles. Operations conducted near buildings or adjacent vegetation shall be closely supervised to prevent damage.

Existing Utilities

The Contractor shall be responsible for locating known utilities and preventing damage to them. Any utility damage caused by the Contractor shall be repaired at no additional cost to the Government, subject to prior approval of the CO. The Contractor shall contact the POC for information regarding known utility locations. Any equitable adjustment shall be handled in accordance with the Changes clause of the General Provisions.

Interruption of Utility Services

No interruption of existing utility services is anticipated. If an interruption becomes necessary, the Contractor shall notify the POC in advance and obtain approval prior to initiating any disruption.

The Contractor shall take all reasonable measures to prevent damage to the surrounding landscape and ground surfaces within and adjacent to the work and staging area.

1.1.4 Task 4: Coconut Waste Disposal

The Contractor is fully responsible for legally disposing of or composting all waste generated by this service in a location outside of KALA. The government estimates approximately 20-tons of green waste debris will be generated from this service. No government waste containers shall be used.

The Contractor may utilize the annual NPS barge sailing for sending in roll-off containers, vehicles, or equipment to perform services under this contract at no additional cost.

Documentation verifying lawful disposal or composting shall be provided to the NPS.

1.1.4.1 Task 4: Additional Detail 1

The Contractor shall be fully responsible for coordinating all waste disposal services, including equipment rentals, ensuring all equipment is functional and in proper working condition, and properly securing all waste for transportation. No debris shall be left on-site, and all waste shall be secured in a manner that prevents shifting, spillage, or release during transportation. Equipment failure shall not alleviate the Contractor from performing any requirement contained in this contract.

1.2 CONTRACTOR PROVIDED EQUIPMENT AND SUPPLIES

1.2.1 CONTRACTOR-FURNISHED EQUIPMENT

The Contractor shall provide and maintain all equipment (including supplies for disinfecting equipment) and personal protective equipment necessary to perform the requirements of this contract. The Contractor may perform cleaning, minor repair, and other normal maintenance requirements of equipment on site. Contractor equipment shall be maintained to present a neat, professional appearance. Contractor equipment shall be used solely for the intended purpose of performing services in this performance work statement during normal hours of operation.

All equipment and personal protective equipment used in the performance of this contract shall be in good operable condition. Equipment found to be unsafe and unable to function as designed, shall not be used in performance of this contract. The CO or POC may inspect the Contractor's equipment at any time while on government property and may direct the removal of any unsafe or unusable equipment from those locations.

The Contractor shall provide adequate numbers of equipment items to effectively fulfill the scope of this contract. In addition, the Contractor shall maintain or have backup capability to provide continued service in the event primary equipment is deemed unsatisfactory or down for extended maintenance or repairs. Equipment failure shall not alleviate the Contractor from performing any requirement contained in this contract.

2.0 SERVICE SUMMARY (SS):

The contract service requirements are summarized in the performance objectives below. The performance threshold briefly describes the minimally acceptable levels of service required for each requirement. The SS provides information on contract requirements, the expected level of Contractor performance and the expected method of government validation and confirmation of services provided. These thresholds are critical to mission success. Procedures as set forth in the

FAR 52.212-4 (a), Contract Terms and Conditions - Commercial Items, Inspection/Acceptance, will be used to remedy all deficiencies.

Performance Objective	PWS Paragraph	Performance Threshold (Per Year)	Method of Surveillance
Task 1: TRIM/PRUNE 200 COCONUT TREES.	1.1.1	No more than 3 validated defect per year	100% Inspection
Task 2: FELL AND REMOVE 10 COCONUT TREES.	1.1.2	No more than 3 validated defect per year	100% Inspection
Task 4: PROPERLY DISPOSE OF COCONUT WASTE	1.1.4	No more than 3 validated defect per year.	100% Inspection

2.1 CONTRACTOR'S QUALITY CONTROL

The Contractor shall develop and maintain a quality program to ensure the services described by this PWS are performed in accordance with commonly accepted commercial practices. The Contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services. At a minimum the Contractor shall develop quality control procedures addressing the areas identified in paragraph 2.0, Service Summary.

2.1.1 CONTRACTOR'S QUALITY CONTROL PLAN (QCP)

The Contractor shall develop and maintain a Quality Control Plan that, at a minimum, communicates: (1) What will be monitored; (2) How monitoring will take place; (3) When monitoring will take place; (4) Who will conduct monitoring; and (5) How monitoring efforts and results will be documented.

2.2 QUALITY ASSURANCE

The Government shall inspect and evaluate the Contractor's performance to ensure services are received in accordance with requirements set forth in this PWS. The Contractor shall provide work schedules to POC in accordance with paragraph 4.4 of this PWS. The POC may inspect by validating actual work performance, physically checking an attribute of the completed task, checking a management information report, investigating customer complaints, conferring with facility managers, or otherwise inspecting the task or its results to determine whether or not performance meets the standards contained in this PWS.

2.3. PERFORMANCE ASSESSMENT

2.3.1 PERIODIC VALIDATIONS

The POC will periodically employ a "spot check" style performance assessment based on the Contractor's performance schedule. Additional validations will be conducted on a scheduled basis and the POC, in coordination with the CO, will establish the validation frequency (e.g., daily, weekly, monthly, quarterly, semi-annual, or annually), which may be adjusted based on quality trends.

2.3.2 UNSATISFACTORY PERFORMANCE.

Any unsatisfactory inspection (defect) result shall be recorded, and the Contractor shall re-perform the service after notification by the CO. Any failure to meet a performance threshold in the Service Summary (SS) where zero (0) defects are permitted will trigger an immediate Progress Meeting, as prescribed in paragraph 2.4. Any failure to meet a performance threshold established in the SS where one (1) or more defects is permitted during a one-month period shall result in a warning letter or letter of concern from the CO. Failure to meet any combination of performance thresholds for two successive months will trigger an immediate Progress Meeting, as prescribed in paragraph 2.4. If unsatisfactory performance continues additional escalation actions may be triggered, to include those remedies described in paragraph 2.5, Government Remedies.

2.4 PERIODIC PROGRESS MEETINGS

2.4.1 PROGRESS MEETINGS

The CO, POC, other government personnel, as appropriate, and the Contractor shall periodically meet to discuss the Contractor's performance. The following issues shall be discussed: opportunities to improve the contract, required contract modification(s), unsatisfactory inspections and trends against each performance objective observed, positive performance and steps taken by the contractor to prevent unsatisfactory occurrences in the future. The Contractor shall provide a summary of unsatisfactory inspections and customer complaints and shall provide insight into any identified trends, root cause analysis, and performance improvement plan.

2.4.2 PROGRESS MEETING MINUTES

The POC will develop meeting minutes and distribute those minutes to the Government team and the Contractor. Should the Contractor not concur with the minutes, the Contractor shall provide a written notification to the POC identifying areas of non-concurrence for resolution.

2.5 GOVERNMENT REMEDIES

The CO will follow FAR 52.212-4 Contract Terms and Conditions-Commercial Items, for the contractor's failure to perform satisfactory services or failure to correct non-conforming services.

3.0 GOVERNMENT FURNISHED PROPERTY AND SERVICES

Government-furnished vehicles and equipment shall be used only during approved work hours and solely for the performance of work under this contract, in accordance with FAR 52.245-1, Government Property. The Contractor shall maintain custody, accountability, and reasonable care of all Government-furnished property, which shall be subject to Government inspection at any time.

Any loss of, damage to, or destruction of Government-furnished property shall be reported to the POC within twenty-four (24) hours of occurrence. Damage resulting from negligent or improper use may render the Contractor financially responsible for repair or replacement costs and may result in revocation of authorization to use Government-furnished property. Upon completion of the work or upon Government direction, all Government-furnished vehicles and equipment shall be returned in the same condition as received, ordinary wear and tear excepted. Smoking and vaping is prohibited inside of all government owned equipment.

The NPS shall provide the following Government-furnished equipment (GFE) to the Contractor for use in the performance of this service at no additional cost:

- 1) Provide one (1) two-passenger dump truck or alternative vehicle with dump trailer, whichever is available during the site-visit, to be operated only by personnel holding a valid driver's license. Vehicle is only approved for use while performing services under this contract.
- 2) Provide one (1) backhoe tractor, to be operated only by approved and qualified heavy equipment operators. Tractor is only approved for use while performing services under this contract.
- 3) Provide one (1) push stump grinder.
- 4) Will request permits from the DOH as the sponsoring agency of the Contractor.
- 5) Provide transportation for Contractors between the Kalaupapa Airport or the Kalaupapa Trail to the job site.
- 6) Provide R/T barge transportation between Honolulu and Kalaupapa, HI at no additional costs for vehicles and equipment.

4.0 GENERAL INFORMATION

4.1 DAYS AND HOURS OF OPERATION: KALAUPAPA NATIONAL HISTORICAL PARK

The Contractor shall perform these services during regular park business hours, Monday-Friday, from 6:00 a.m. to 4:30 p.m. HST, except as otherwise approved by the POC.

During the week of barge, hours of operation are Monday through Saturday between 6:00am and 4:30pm HST.

4.2 HOLIDAYS & CLOSURES

No work shall be performed on Holidays. Contractor shall make every effort to schedule work on days other than those noted below; except as otherwise approved by the POC.

New Year's Day	Labor Day
Martin Luther King Jr.'s Birthday	Columbus Day
Washington's Birthday	Veterans Day
Memorial Day	Thanksgiving Day
Juneteenth National Independence Day	Christmas Day
Independence Day	

4.3 CONTRACTOR WORK SCHEDULE

4.3.1 SCHEDULE SUBMISSION AND APPROVAL

The Contractor shall submit a performance schedule for each service year described in this PWS and Appendices to the POC for approval 30-days prior for each site visit. The Contractor shall not deviate from the approved schedule without prior approval from the POC. Permanent changes to

the schedule shall be submitted 10 days before implementation and must receive POC approval before the Government will allow the proposed changes. The schedule must be submitted electronically using a file format compatible with Government software.

4.4 CONTRACTOR PERSONNEL

4.4.1 CONTRACT MANAGER

The Contractor shall establish a Contract Manager or alternate(s) that can be contacted during work hours. The Contract Manager or alternate shall be available during normal duty hours to discuss contract related matters. The Contractor shall provide the CO the telephone number(s) where performance validation results and complaints can be reported. This information will be kept updated by the contractor whenever personnel changes occur. The contract manager or alternate shall have full authority to act for the contractor on all contract matters relating to the daily operation of this contract.

4.4.2 CONTRACTOR PERSONNEL APPEARANCE

Contractor personnel shall present a neat and professional appearance and shall be easily recognizable while performing work under this contract. Personnel shall wear distinctive clothing, outerwear, or headwear bearing the Contractor's company name or logo, with colors or designs that allow for quick and clear identification for safety and personal protection purposes. Contractor personnel shall be fully clothed at all times while performing services under this contract; "fully clothed" is defined as wearing a shirt (or T-shirt), trousers, closed-toe shoes, and required personal protective equipment (PPE). Contractor personnel shall conduct themselves with tact, diplomacy, and courtesy during all interactions with the community.

4.4.3 EMPLOYEE RESTRICTIONS

The Government is authorized to restrict employment under the contract of any Contractor employee or prospective contractor employee who is identified as a potential threat to the health, safety, security, general well-being, or operational mission of the installation and its population.

4.5 CONTRACTOR MANPOWER REPORTING – RESERVED

4.6 INSTALLATION SECURITY AND ACCESS REQUIREMENTS

The Contractor shall contact the POC for guidance regarding access requirements. Kalaupapa remains home to Hansen's disease patients, and their privacy and dignity shall be strictly respected in accordance with DOH rules and restrictions. All visitors and Contractor personnel are subject to a standard set of regulations governing access to Kalaupapa. Contractor personnel shall be sponsored into the park and obtain a valid access permit no less than five (5) business days in advance, in accordance with DOH policies and procedures. All Contractor personnel shall acknowledge in writing that they have read and understood these regulations prior to entry.

Daily commercial passenger air transportation to Kalaupapa is available exclusively through Mokulele Airlines.

4.6.1 SITE VISIT

A site visit is highly encouraged and may be provided, as requested. Please contact the POC to arrange for access to the site at least 5 business days in advance. The Contractor is responsible for all travel costs and arrangements associated with a site visit.

Smoking and vaping are prohibited inside or outside within 25 feet of any building in the park. This applies to existing buildings and buildings under construction or renovation. Discarding of tobacco products or debris anywhere other than into designated waste receptacles is considered littering and subject to fines.

4.6.2 LODGING

There are no food services or retail stores available at Kalaupapa for visitor or contractor use. Contractor personnel are responsible for bringing all required food and personal provisions for their entire visit and must remove any remaining provisions upon departure.

Lodging, if available, is provided only through the DOH administration office at a rate of \$20.00 per person per night in shared lodging facilities. Basic amenities, including linens, bath towels, and cooking and dining ware, are provided. All other personal items and supplies are the responsibility of contractor personnel. Payment is made directly to DOH administration office on the first day of arrival. If arriving over the weekend, payment must be made in advance.

4.7 SAFETY REQUIREMENTS AND REPORTS

The Contractor shall perform work in a safe manner as required by Occupational Safety and Health Administration (OSHA) Requirements. The Contractor shall immediately provide a verbal report to the POC for each occurrence of damage to Government property or an accident resulting in death, injury, occupational disease, or adverse environmental impact.

4.8 DAMAGES TO GOVERNMENT BUILDINGS, EQUIPMENT OR VEGETATION.

Damages to government buildings, equipment, or vegetation are addressed in FAR 52.237-2, Protection of Government Buildings, Equipment and Vegetation. The Contractor shall use reasonable care to avoid damaging existing buildings, equipment, and vegetation on the Government installation. If the Contractor's failure to use reasonable care causes damage to any of this property, the Contractor shall replace or repair the damage at no expense to the Government as the Contracting Officer directs. If the Contractor fails or refuses to make such repair or replacement, the Contractor shall be liable for the cost, which may be deducted from the contract price.

4.9 CONTRACTOR QUALIFICATION

The Contractor shall be responsible for complying with all Federal, State and Local requirements for waste disposal and any other service activities made under this effort. The Contractor shall possess all appropriate licensing for the service which is being provided. The Contractor shall be responsible to ensure Sub-Contractors possess the appropriate licensing for the sub-contracted service activities provided.

4.10 CONTRACTING OFFICER (CO) AND POINT OF CONTACT (POC) (QUALITY ASSURANCE PERSONNEL).

The CO will appoint a POC representative for management of the day-to-day activities of the contract. The identity, title, and authority of this representative will be provided in writing to the Contractor after contract award.

5.0 INVOICING AND PAYMENT

Invoicing and payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP) located at www.IPP.gov. Payment will be made based on actual weights that are composted or disposed.

6.0 APPENDICES

The Government will make all of the below listed documents, forms, references and report formats directly addressed within this Performance-Based Work Statement available. Supplements or amendments to the below listed materials from any organizational level may be issued during the life of the contract. When notified by the CO, the Contractor shall immediately implement those changes in publications, which result in a decrease, or no change in the contract price. Prior to implementing any such revision, supplement, or amendment that will result in an increase in contract price, the Contractor shall submit to the CO a price proposal and obtain prior approval. Price proposals shall be submitted within 15 calendar days from the date the Contractor receives notice of the revision, supplement, or amendment giving rise to the increase in cost of performance. Changes in the contract price due to supplements and amendments shall be considered under the FAR 52.212-4, Contract Terms and Conditions – Commercial Items clause. Failure of the Contractor to submit a price proposal within 15 calendar days from the date of receipt of any change, shall entitle the Government to performance in accordance with such change, at no increase in contract price.

APPENDIX A – Map of All Coconut Trees in Kalaupapa

APPENDIX B – Application for Service Provider Permit, Attachment B Visitor Rules and Regulations for Kalaupapa Settlement, Kalaupapa Risk Acknowledgement and Liability Waiver

Appendix C – Kalaupapa Neighborhood Zones

Appendix D – Kalaupapa National Historical Park Guidelines for the Management of Coconut Trees